

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. SEC.
99-15-26

IN THE OF , MISSISSIPPI
(WRITE THE COURT THAT HEARD THE CASE - JUSTICE, COUNTY, CIRCUIT OR MUNICIPAL
COURT - AND ITS COUNTY; FOR A MUNICIPAL COURT, ITS CITY. MISSISSIPPI HAS FOUR
TRIAL COURT LEVELS AND PEOPLE ROUTINELY MISIDENTIFY WHICH ONE HEARD THEIR
CASE - CHECK THE PAPERS.)

STATE OF MISSISSIPPI

VS.

Maria-Alejandra O'Shaughnessy-Whitfield, PETITIONER

CAUSE NO.

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. Sec.
99-15-26

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, petitions this court, the court that ordered nonadjudication in this cause, for expungement of the record of this cause pursuant to Miss. Code Ann. Sec. 99-15-26. This petition is pleaded under Sec. 99-15-26 alone.

2. The petitioner states the following from the court record and the case papers (nothing on these lines is written for you):

Date of birth of the petitioner: 1968-12-31

Any other name the case record is under, exactly as the record states it, if any:

.....

Charge in the cause, worded exactly as the record words it:

.....

Date of the offense, as the record states it:

.....

Date of arrest or citation:

.....

Name of the agency that arrested or cited the petitioner:

.....

Case number assigned by that agency, if one appears on the record:

.....

3. The court withheld acceptance of the petitioner's guilty plea and sentence and ordered nonadjudication, imposing conditions, on the following date and terms:

Date of the order of nonadjudication:

.....

Conditions the court imposed, as the nonadjudication order states them:

.....

.....

4. The petitioner successfully completed every condition the court imposed, and the court thereafter directed that the cause be dismissed and the case closed, as Miss. Code Ann. Sec. 99-15-26(4) provides:

Date the petitioner completed every condition, as the proof of completion shows:

.....

Date of the order dismissing the cause and closing the case:

.....

5. The petitioner therefore requests that the court order the expungement of the record of this cause on petition under Miss. Code Ann. Sec. 99-15-26, with the effect that section provides. Whether the petitioner meets the criteria for expungement is the court's determination, and this petition proposes it rather than asserts it.

6. Attached are the exhibits the exhibit checklist in this packet names, each obtained by the petitioner from the office that issues it.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Hattiesburg, Mississippi
39401-2214

TELEPHONE: (769) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:MS:ms-nonadj

PROPOSED ORDER OF EXPUNGEMENT (TENDERED FOR THE COURT'S CONSIDERATION)

IN THE OF , MISSISSIPPI
(WRITE THE COURT THAT HEARD THE CASE - JUSTICE, COUNTY, CIRCUIT OR MUNICIPAL
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STATE OF MISSISSIPPI

VS.

Maria-Alejandra O'Shaughnessy-Whitfield, PETITIONER

CAUSE NO.

PROPOSED ORDER OF EXPUNGEMENT

THIS CAUSE came before the court on the petition of Maria-Alejandra O'Shaughnessy-Whitfield for expungement of the record of this cause under Miss. Code Ann. Sec. 99-15-26, and the court, having considered the petition, proposes to find and order as follows. (Every finding below is tendered for the court's own determination; nothing in this proposed order asserts a finding as fact, and the order takes effect only if and when the court signs it.)

THE COURT FINDS that the cause was nonadjudicated under Miss. Code Ann. Sec. 99-15-26, that the conditions imposed were successfully completed, and that the cause was dismissed and the case closed.

IT IS THEREFORE ORDERED that all official records of the arrest or citation, the charge and the disposition in this cause be expunged, and that each person and agency keeping any official record of the cause conform its records accordingly, including those named below:

Names of the persons and offices keeping official records of the cause, as the record shows them (for example the arresting or citing office, the sheriff's department of the county, and this court - write each as the record names it; never guessed and never pre-printed):

.....
.....
.....

PROVIDED that fingerprint records are excepted as provided by law, and that a nonpublic record is retained by the Mississippi Criminal Information Center for the purposes the law provides, including first-offender determinations.

SO ORDERED, this day of, 20.....

.....

JUDGE

APPROVED AS TO FORM (completed, if the prosecuting authority approves, by that authority; never pre-signed and never pre-filled):

.....
PROSECUTING AUTHORITY

Route: obligation:track-only:MS:ms-nonadj

CERTIFICATE OF SERVICE ON THE PROSECUTING AUTHORITY

IN THE OF , MISSISSIPPI
(WRITE THE COURT THAT HEARD THE CASE - JUSTICE, COUNTY, CIRCUIT OR MUNICIPAL COURT - AND ITS COUNTY; FOR A MUNICIPAL COURT, ITS CITY. MISSISSIPPI HAS FOUR TRIAL COURT LEVELS AND PEOPLE ROUTINELY MISIDENTIFY WHICH ONE HEARD THEIR CASE - CHECK THE PAPERS.)

STATE OF MISSISSIPPI

VS.

Maria-Alejandra O'Shaughnessy-Whitfield, PETITIONER

CAUSE NO.

CERTIFICATE OF SERVICE ON THE PROSECUTING AUTHORITY

I, Maria-Alejandra O'Shaughnessy-Whitfield, certify that on the date stated below I delivered a true and correct copy of the Petition for Expungement and the Proposed Order in this cause to the prosecuting authority named below, by United States mail or by hand delivery (strike the one that does not apply).

Name and mailing address of the prosecuting authority served (the district attorney for the circuit district for a circuit-court case, or the county or municipal prosecuting authority for a lower court - write the current published address; never a default):

.....
.....

DATE OF SERVICE

SIGNATURE

This page is not proof of service and does not say that anything has been served. It is completed and signed when the copy actually goes out. A date or a signature written before the copy goes out would be false.

Route: obligation:track-only:MS:ms-nonadj

EXHIBIT CHECKLIST

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Each exhibit below is named, with the office that issues it. This packet never receives, inspects or authenticates any of them - you obtain each one yourself and attach it to the petition.

EXHIBIT A - IN EVERY CASE. The disposition or sentencing order in the cause. Issued by the office of the court that heard the case.

EXHIBIT B - IN EVERY CASE. Certified copy of the order of nonadjudication placing you on conditions. Issued by the office of the court.

EXHIBIT C - IN EVERY CASE. Certified copy of the order dismissing the cause and closing the case. Issued by the office of the court.

EXHIBIT D - IN EVERY CASE. Proof that you completed every condition the court imposed - payment records, program discharge papers, or the supervising officer's written confirmation. Issued by the supervising authority, the program, or the office of the court.

EXHIBIT E - ONLY WHERE THE CASE WAS ACTUALLY INDICTED. A copy of the indictment. Most misdemeanors are never indicted, and many dismissed cases are dismissed before indictment; attach this exhibit only if an indictment exists in your case. (The archived local models plead an indictment in every case; that is wrong for most misdemeanors and is not reproduced here.)

STRONGLY ADVISED, NOT ATTACHED. Your own Mississippi criminal history record, from the Mississippi Criminal Information Center, so you can see every case on your record before you file. Self-report is not enough where first-offender status or a multi-court good-conduct period is in issue.

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PARTICIPANT INSTRUCTIONS

This packet is prepared for expunging a Mississippi case in which the court withheld your guilty plea and dismissed the cause after you completed its conditions, under Miss. Code Ann. Sec. 99-15-26.

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

READ THIS FIRST. Mississippi has NO statewide expungement form, and practice varies by county and by circuit district. Some districts expect the district attorney to approve the order as to form before the judge will sign. CALL the office of the court where your case was heard BEFORE filing and ask whether that court has its own preferred form or additional requirements. If it does, the local form governs.

WHAT YOU DO, IN ORDER.

STEP ONE. Identify the correct court and county. Mississippi has four trial court levels - justice, county, circuit and municipal - that all handle expungements. Check the case papers.

STEP TWO. Ask that court's office for the case file, the docket sheet and the account balance sheet.

STEP THREE. Call that office and ask about local form preferences, any additional requirements, and the filing fee. NO FEE AMOUNT IS PUBLISHED IN THIS PACKET: the Sec. 99-19-72 fee applies by its terms to petitions under Sec. 99-19-71 and does not reach Sec. 99-15-26, so confirm what, if anything, that court collects, and ask about any pauper's-affidavit route at the same office.

STEP FOUR. Fill in every dotted blank from the record, attach the exhibits the checklist names, sign the petition, and file it with the proposed order.

STEP FIVE. Deliver a copy of the petition and proposed order to the prosecuting authority, and complete and keep the certificate of service.

STEP SIX. Expect in some districts that the prosecuting authority is asked to approve the order as to form before the judge signs. That is a negotiation this packet does not conduct; if the prosecuting authority declines or is silent, stop and take the packet to a lawyer.

STEP SEVEN. After the order issues, obtain certified copies from the court office and deliver one to every person and office named in the order.

WHAT THE ORDER DOES NOT DO. Fingerprint records are excepted as provided by law. The Mississippi Criminal Information Center keeps a nonpublic record for the purposes the law provides, including first-offender determinations. An employer may still ask whether an order of expunction was entered. Nothing is erased everywhere, and Mississippi has NO automatic record clearance.

THE HARD LIMITS, FROM THE STATUTE. Nonadjudication is generally a once-only benefit. Some offenses - crimes against the person, crimes of violence as defined in Sec. 97-3-2, Sec. 97-11-31 violations, certain public-funds offenses, trafficking under Sec. 41-29-139(f), and Implied Consent Law offenses - could not be nonadjudicated at all; if your charge may be one of them, stop and get advice before filing.

WHEN TO STOP AND GET A LAWYER INSTEAD OF FILING.

- The nonadjudication order, the dismissal order or the proof of completion is missing.
- The offense may have been excluded from nonadjudication in the first place.
- The nonadjudication was revoked, or the conditions were not completed.

- It is unclear whether your case should be routed under Sec. 99-15-26 or Sec. 99-19-71(4) - they are separate tracks with different eligibility and proof, this petition pleads Sec. 99-15-26 alone, and the routing question is recorded as unresolved.
- The prosecuting authority declines to approve the order as to form, or is silent.
- You are not a United States citizen.

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